

HOUSE BILL No. 1218

DIGEST OF INTRODUCED BILL

Citations Affected: IC 3-6-4.2-14; IC 3-10-7-32; IC 3-11; IC 3-12-1.

Synopsis: Straight ticket voting. Removes a voter's option to vote for all candidates of a political party or an independent ticket at one time (straight ticket voting) in a general or municipal election. Repeals superseded statutes relating to straight ticket voting.

Effective: July 1, 2026.

Clere, Dant Chesser, Hamilton

January 5, 2026, read first time and referred to Committee on Elections and Apportionment.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1218

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 3-6-4.2-14, AS AMENDED BY P.L.186-2025,
2 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 14. (a) Each year in which a general or municipal
4 election is held, the election division shall call a meeting of all the
5 members of the county election boards, the boards of registration
6 (subject to IC 3-7-12), and the boards of elections and registration (as
7 defined in IC 3-5-2.1-12) to instruct them regarding all of the
8 following:
9 (1) Their duties under this title and federal law (including HAVA
10 and NVRA).
11 (2) Requirements and best practices concerning cybersecurity for
12 the computerized list, voting systems, and electronic poll books.
13 (3) Physical security for all aspects of the election process,
14 including voting systems, electronic poll books, absentee voting,
15 and polling places.
16 (4) Requirements and best practices to ensure that voting systems,
17 precinct polling places, and vote centers are accessible to voters



with disabilities.

(5) Best practices in answering voters' questions on how to vote.
~~including providing instructions to voters on straight ticket voting.~~

(b) The election division may call a meeting under this section:

(1) during a year in which a general or a municipal election is not held; and

(2) at other times when the election division determines that doing so is necessary or desirable.

(c) Each circuit court clerk, each member of a board of registration established under IC 3-7-12, and each director, assistant director, or co-director of a board of elections and registration shall attend a meeting called by the election division under this section. A member of a county election board may attend a meeting called by the election division under this section. A circuit court clerk, member of a board of registration, or member of a board of elections and registration may require the attendance of the following:

(1) Each of the circuit court clerk's, board of registration member's, or board of elections and registration member's appointed and acting chief deputies or chief assistants with election related responsibilities.

(2) If the number of deputies or assistants:

(A) is not more than three (3), one (1) of the clerk's or member's appointed and acting deputies or assistants; or

(B) is greater than three (3), two (2) of the clerk's or member's appointed and acting deputies or assistants.

(d) The election division shall set the time and place of the instructional meeting. In years in which a primary election is held, the election division:

(1) may conduct the meeting before the first day of the year; and

(2) shall conduct the meeting before primary election day.

The instructional meeting may not last for more than three (3) days.

(e) Each individual who attends the meeting under subsection (c) and an individual who has been elected or selected to serve as circuit court clerk but has not yet begun serving in that office is entitled to receive all of the following from the county general fund without appropriation:

(1) A sum for mileage at a rate determined by the fiscal body of the unit the official represents for each mile necessarily traveled in going to and returning from the meeting by the most expeditious route. Regardless of the duration of the conference, only one (1) mileage reimbursement shall be allowed to the official furnishing the conveyance even if the official transports



more than one (1) person.

(2) An allowance for lodging for each night preceding conference attendance in an amount equal to the single room rate. However, lodging expense, in the case of a one (1) day conference, shall only be allowed for persons who reside fifty (50) miles or farther from the conference location.

(3) Reimbursement of an official, a deputy, or an assistant in an amount determined by the fiscal body of the unit the official, deputy, or assistant represents, for meals purchased while attending a conference called under this section.

(f) The election division shall certify the number of days of attendance and the mileage for each conference to each official, deputy, or assistant attending any conference under this section.

(g) All payments of mileage and lodging shall be made by the proper disbursing officer in the manner provided by law on a duly verified claim or voucher to which shall be attached the certificate of the election division showing the number of days attended and the number of miles traveled. All payments shall be made from the county general fund from any money not otherwise appropriated and without any previous appropriation being made therefore.

(h) A claim for reimbursement under this section may not be denied by the body responsible for the approval of claims if the claim complies with IC 5-11-10-1.6 and this section.

SECTION 2. IC 3-10-7-32, AS AMENDED BY P.L.190-2011, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32. (a) A town election board shall determine what voting method will be used in a municipal election.

(b) The town election board and its precinct election officers shall perform the duties of the county election board and its precinct election officers under IC 3-11 for each voting method used.

(c) The town election board shall prepare the ballots in the form prescribed by IC 3-11 and distribute them to the precincts in the town.

(d) This subsection applies only to paper ballots. Notwithstanding subsection (c), the town election board, by unanimous consent of the board's entire membership, may authorize the printing or reproduction of ballots on equipment under the control of the town clerk-treasurer. If the town election board acts under this subsection, the ballots are not required to conform to the precise dimensions concerning the size of political party devices under IC 3-11-2-9 or the placement of a candidate's name under ~~IC 3-11-2-10(f)~~. **IC 3-11-2-10(d)**. However, the ballots must otherwise substantially conform with IC 3-11-2.

SECTION 3. IC 3-11-2-9, AS AMENDED BY P.L.195-2025,



SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The device of each political party described in section 6 of this chapter shall be:

(1) enclosed in a circle not less than three-fourths (3/4) of an inch in diameter; and

(2) placed under the name of the party or independent ticket, as required by section 10 of this chapter.

(b) A device of a political party must not be printed on a ballot if ~~(1) there are no candidates of that political party. or~~

~~(2) the only candidates:~~

~~(A) of the political party; or~~

~~(B) that have stated an affiliation with the political party under~~

~~IC 3-8-2.5-2.5(a)(5);~~

~~are for election to school board offices or offices to which more than one (1) individual is to be elected and which will not be credited with a vote under IC 3-12-1-7 or IC 3-12-1-7.1 if a voter casts a straight party ticket.~~

SECTION 4. IC 3-11-2-10, AS AMENDED BY P.L.195-2025, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) Public questions shall be placed on the general election ballot in the following order after the statement described in section 7 of this chapter, and the instructions described in ~~subsections (d) and (e) subsection (c)~~ and section 8 of this chapter, if instructions are printed on the ballot:

(1) Ratification of a state constitutional amendment.

(2) Local public questions.

Subject to section 10.1 of this chapter, each public question shall be placed in a separate column on the ballot.

(b) The name or title of the political party shall be placed on the general election ballot after the public questions described in subsection (a). The device of the political party shall be placed immediately under the name of the political party. ~~Notwithstanding section 8(b) of this chapter, the instructions for voting a straight party ticket shall be placed to the right of the device on the ballot.~~

(c) The instructions for voting a straight party ticket must conform as nearly as possible to the following:

"(1) You are not required to vote a straight party ticket. If you do not wish to vote a straight party ticket, do not make a mark in this section; and proceed to voting the ballot by office.

(2) To vote a straight (insert political party name) ticket for all (insert political party name) candidates on this ballot, except for candidates described in (3) below, make a voting mark on or in



1 this circle and do not make any other marks on this ballot.

2 (3) To vote for any candidate for:

3 (A) an at-large office (insert county council; city common
4 council; town council; or township board if those offices
5 appear on this ballot) to which more than one (1) person may
6 be elected; or

7 (B) a school board office;

8 you must make another voting mark for each candidate you wish
9 to vote for. Your straight party vote will not count as a vote for
10 any candidate for that office.

11 (4) If you wish to vote for a candidate seeking a nonpartisan office
12 or on a public question, you must make another voting mark on
13 the appropriate place on this ballot."

14 (d) Except as permitted under section 8(b) of this chapter, if the
15 ballot contains an independent ticket described in section 6 of this
16 chapter and at least one (1) other independent candidate, the ballot
17 must also contain a statement that reads substantially as follows: "A
18 vote cast for an independent ticket will only be counted for the
19 candidates for President and Vice President or governor and lieutenant
20 governor comprising that independent ticket. This vote will NOT be
21 counted for any OTHER independent candidate appearing on the
22 ballot."

23 (e) (c) Except as permitted under section 8(b) of this chapter, the
24 ballot must also contain a statement that reads substantially as follows:
25 "A write-in vote will NOT be counted unless the vote is for a
26 DECLARED write-in candidate. To vote for a write-in candidate, you
27 must make a voting mark on or in the square to the left of the name you
28 have written in or your vote will not be counted."

29 (f) (d) Subject to section 10.1 of this chapter, the list of candidates
30 of the political party shall be placed immediately under the instructions
31 for voting a straight party ticket. The names of the candidates shall be
32 placed three-fourths (3/4) of an inch apart from center to center of the
33 name. The name of each candidate must have, immediately on its left,
34 a square three-eighths (3/8) of an inch on each side.

35 (g) (e) The circuit court clerk may authorize the printing of ballots
36 containing a ballot variation code to ensure that the proper version of
37 a ballot is used within a precinct.

38 SECTION 5. IC 3-11-2-12.4, AS AMENDED BY P.L.109-2021,
39 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
40 JULY 1, 2026]: Sec. 12.4. (a) This section applies whenever more than
41 one (1) candidate may be elected to an office.

42 (b) The office shall be placed on the general election ballot after the



1 offices described in section 12 of this chapter and before the offices
2 described in section 12.9 of this chapter.

3 (c) Whenever candidates are to be elected to a county council, city
4 common council, or town council that includes both an at-large
5 member and a member representing a district, the candidates seeking
6 election as an at-large member shall be placed on the ballot before
7 candidates seeking to represent a district.

8 (d) The ballot shall contain a statement reading substantially as
9 follows above the name of the first candidate: "To vote for any
10 candidate for this office, you must make a voting mark for each
11 candidate you wish to vote for." ~~A straight party vote will not count as~~
12 ~~a vote for any candidate for this office."~~

13 SECTION 6. IC 3-11-2-12.9, AS AMENDED BY P.L.195-2025,
14 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
15 JULY 1, 2026]: Sec. 12.9. (a) School board offices to be elected at the
16 general election shall be placed on the general election ballot after the
17 offices described in section 12.4 of this chapter.

18 (b) If the ballot contains a candidate for a school board office, the
19 ballot must also contain a statement that reads substantially as follows:
20 "To vote for a candidate for this office, make a voting mark on or in the
21 square to the left of the candidate's name." ~~A straight party vote will~~
22 ~~not count as a vote for any candidate for this office."~~

23 (c) Whenever candidates are to be elected to a school board office
24 that includes both an at-large member and a member representing a
25 district, the candidates seeking election as an at-large member shall be
26 placed on the ballot before candidates seeking to represent a district.

27 SECTION 7. IC 3-11-7-4, AS AMENDED BY P.L.195-2025,
28 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
29 JULY 1, 2026]: Sec. 4. (a) ~~Except as provided in subsection (b);~~ A
30 ballot card voting system must permit a voter to vote

31 ~~(1) except at a primary election, a straight party ticket for all of~~
32 ~~the candidates of one (1) political party by a single voting mark~~
33 ~~on each ballot card;~~

34 (2) for one (1) or more candidates of each political party or
35 independent candidates, or for one (1) or more school board
36 candidates nominated by petition.

37 (3) a split ticket for the candidates of different political parties
38 and for independent candidates; or

39 (4) a straight party ticket and then split that ticket by casting
40 individual votes for candidates of another political party or
41 independent candidate.

42 ~~(b) A ballot card voting system must require that a voter who wishes~~



to cast a ballot for a candidate for election to a school board office or an at-large district to which more than one (1) person may be elected; on a:

- (1) county council;
- (2) city common council;
- (3) town council; or
- (4) township board;

make a voting mark for each individual candidate for whom the voter wishes to cast a vote. The ballot card voting system may not count any straight party ticket voting mark as a vote for any candidate for an office described by this subsection:

(c) (b) A ballot card voting system must permit a voter to vote:

- (1) for all candidates for presidential electors and alternate presidential electors of a political party or an independent ticket by making a single voting mark; and
- (2) for or against a public question on which the voter may vote.

SECTION 8. IC 3-11-7-6 IS REPEALED [EFFECTIVE JULY 1, 2026]. See: 6. Subject to IC 3-12-1-7.1, a ballot card voting system must count a ballot in accordance with IC 3-12-1-7 when a voter votes a straight ticket vote and votes for individual candidates as described by IC 3-12-1-7.

SECTION 9. IC 3-11-7.5-10, AS AMENDED BY P.L.195-2025, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) Except as provided in subsection (b); An electronic voting system must permit a voter to vote

- (1) except at a primary election, a straight party ticket for all the candidates of one (1) political party by touching the device of that party;
- (2) for one (1) or more candidates of each political party or independent candidates, or for one (1) or more school board candidates nominated by petition.
- (3) a split ticket for the candidates of different political parties and for independent candidates; or
- (4) a straight party ticket and then split that ticket by casting individual votes for candidates of another political party or independent candidates.

(b) An electronic voting system must require that a voter who wishes to cast a ballot for a candidate for election to a school board office or an at-large district to which more than one (1) person may be elected, on a:

- (1) county council;
- (2) city common council;



1 (3) town council; or
 2 (4) township board;
 3 make a voting mark for each individual candidate for whom the voter
 4 wishes to cast a vote. The electronic voting system may not count any
 5 straight party ticket voting mark as a vote for any candidate for an
 6 office described by this subsection:

- 7 (e) (b) An electronic voting system must permit a voter to vote:
 8 (1) for as many candidates for an office as the voter may vote for,
 9 but no more;
 10 (2) for or against a public question on which the voter may vote,
 11 but no other; and
 12 (3) for all the candidates for presidential electors and alternate
 13 presidential electors of a political party or an independent ticket
 14 by making a single voting mark.

15 SECTION 10. IC 3-11-11-10 IS REPEALED [EFFECTIVE JULY
 16 1, 2026]. See: 10: If an election is a general or municipal election and
 17 a voter desires to vote for all the candidates of one (1) political party or
 18 group of petitioners, the voter may make a voting mark on or in a large
 19 circle enclosing the device and before the name under which the
 20 candidates of the party are printed. The voter's vote shall then be
 21 counted for all the candidates under that party name:

22 SECTION 11. IC 3-11-13-7.5, AS ADDED BY P.L.109-2021,
 23 SECTION 44, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 24 JULY 1, 2026]: Sec. 7.5. (a) This section applies to a marking device
 25 used in a voting system that:

- 26 (1) contains features of both a ballot card voting system and an
 27 electronic voting system; and
 28 (2) produces a ballot card with the voter's choices as selected by
 29 the voter and marked on the card by the device.
 30 (b) The interface of the marking device used with an optical scan
 31 voting system must include all of the following:
 32 (1) The information required by IC 3-11-14-3.5.
 33 (2) The instructions required by IC 3-11-2-8.
 34 (3) The information and instructions required by IC 3-11-2-10.
 35 (c) A marking device must comply with the same disability access
 36 standards as an electronic voting system under IC 3-11-15-13.6.
 37 (d) Notwithstanding any other provision of this title, a ballot card
 38 used with a marking device must have either preprinted or printed by
 39 the marking device the following:
 40 (1) When the marking device is used for absentee voting under
 41 IC 3-11-10-26, the circuit court clerk's signature and seal required
 42 by IC 3-11-10-27.



(2) When the marking device is used by a voter to cast a provisional ballot, the circuit court clerk's signature and seal required by IC 3-11.7-1-7.

(3) A line or box for each poll clerk's initial as required by section 19 of this chapter.

(4) When the marking device is used during a primary election, the name of the political party whose primary the voter is participating in or the word "nonpartisan" if the voter is voting a ballot that contains only a public question certified by the county election board under IC 3-10-9.

(e) If the voting system produces a ballot card, the ballot card must contain a summary ballot scan of the voter's ballot that includes all of the following:

(1) The name or designation of each office on the voter's ballot.

(2) The name of the candidate and the candidate's political party selected by the voter.

~~(3) If the voter selects a straight party ticket, the name of the political party ticket the voter selected.~~

~~(4)~~ (3) A description of the text of any public question or judicial retention question on the voter's ballot that the county election board determines reasonably conveys the content of the public question or judicial retention question and the response the voter selected for each question.

The ballot card may contain additional information described in subsection (b).

(f) Notwithstanding any other provision of this chapter, a ballot card used with the marking device may be a different dimension or size than other ballot cards:

(1) approved by the county election board for use in an election; and

(2) that are not designed to be marked by the marking device.

(g) A voter verifiable paper audit trail is not a marking device.

SECTION 12. IC 3-11-13-11, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) The ballot information, whether placed on the ballot card or on the marking device, must be in the order of arrangement provided for ballots under this section.

(b) Each county election board shall have the names of all candidates for all elected offices, political party offices, and public questions printed on a ballot card as provided in this chapter. The county may:



(1) print all offices and questions on a single ballot card; and

(2) include a ballot variation code to ensure that the proper version of a ballot is used within a precinct.

(c) Each type of ballot card must be of uniform size and of the same quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate or independent ticket (described in IC 3-11-2-6) nominated by petitioners shall be listed on the ballot with the name and device set forth on the certification or petition. The circle containing the device may be of any size that permits a voter to readily identify the device. IC 3-11-2-5 applies if the certification or petition does not include a name or device, or if the same device is selected by two (2) or more parties or petitioners. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate:

(1) is not affiliated with a political party; and

(2) does not identify as an independent candidate.

(e) The offices and public questions on the general election ballot must be placed on the ballot in the order listed in IC 3-11-2-12, IC 3-11-2-12.4, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a), IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). The offices and public questions may be listed in a continuous column **or row** either vertically or horizontally and on a number of separate pages.

(f) The name of each office must be printed in a uniform size in bold type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for." ~~A straight party vote will not count as a vote for any candidate for this office.~~; if more than one (1) candidate is to be elected to the office.

(3) ~~"Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office."~~; if only one (1) candidate is to be elected to a school board office.

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be



grouped together in the following order:

(1) The major political party whose candidate received the ~~highest~~ **greatest** number of votes in the county for secretary of state at the ~~last~~ **most recent** election **for secretary of state** is listed first.

(2) The major political party whose candidate received the second ~~highest~~ **greatest** number of votes in the county for secretary of state **at the most recent election for secretary of state** is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the ~~last~~ **most recent** election **for secretary of state** are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the ~~last~~ **most recent** election **for secretary of state** or a nominee is an independent candidate or independent ticket (described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).

(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C) is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed in subdivisions (1) through (6), if required by law.

(8) The name of a write-in candidate may not be listed on the ballot.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent" if the:

(1) candidate; or

(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in a uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate is not affiliated with a



political party and does not identify as an independent candidate.

(i) All the candidates of the same political party for election to at-large seats on the fiscal or legislative body of a political subdivision must be grouped together:

- (1) under the name of the office that the candidates are seeking;
- (2) in the order established by subsection (g); and
- (3) within the political party, in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) of ANY party for this office."

(j) Candidates for election to at-large seats on the governing body of a school corporation must be grouped:

- (1) under the name of the office that the candidates are seeking; and
- (2) in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office." ~~A straight party vote will not count as a vote for any candidate for this office."~~

(k) The following information must be placed at the top of the ballot before the first public question is listed:

- (1) The cautionary statement described in IC 3-11-2-7.
- (2) The instructions described in IC 3-11-2-8 ~~IC 3-11-2-10(d), and IC 3-11-2-10(e).~~ **IC 3-11-2-10(c).**

(l) The ballot must include: ~~a single connectable arrow, circle, oval, or square; or a voting position for voting a straight party ticket by one (+) mark as required by section 14 of this chapter; and the single connectable arrow, circle, oval, or square; or the voting position for casting a straight party ticket ballot must be identified by:~~

- (1) the name of the political party; and
- (2) immediately below or beside the political party's name, the device of that party (described in IC 3-11-2-5).

The name and device of each political party must be of uniform size and type and arranged in the order established by subsection (g) for listing candidates under each office. ~~The instructions described in IC 3-11-2-10(c) for voting a straight party ticket and the statement concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight~~



party ticket; do not make a mark in this section and proceed to voting the ballot by office."

(m) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a single connectable arrow, a circle, or an oval may be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot card that contains language concerning the public question other than the language authorized by a statute.

(n) The requirements in this section:

(1) do not replace; and

(2) are in addition to;

any other requirements in this title that apply to optical scan ballots.

(o) The procedure described in IC 3-11-2-16 must be used when a ballot does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters.

(p) This subsection applies to an optical scan ballot that does not list:

(1) the names of political parties or candidates; or

(2) the text of public questions;

on the face of the ballot. The ballot must be prepared in accordance with this section, except that the ballot must include a numbered circle or oval to refer to each political party, candidate, or public question.

SECTION 13. IC 3-11-13-14 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 14: (a) In partisan elections, the ballot labels must include a voting square or position where a voter may by one (1) voting mark on each card record a straight party ticket vote for all the candidates of one (1) political party; except for offices for which the voter:

(1) is required to cast an individual vote for a candidate under IC 3-11-7-4(b); or

(2) has voted individually for a candidate for any other office.

(b) A ballot label must not include a voting square or position to permit a voter to cast a straight party ticket for a political party if:

(1) there are no candidates of that political party; or

(2) the only candidates:

(A) of the political party; or

(B) that have stated an affiliation with the political party under IC 3-8-2.5-2.5(a)(5);

are for election to school board offices or offices to which more than one (1) individual is to be elected and which will not be credited with a vote under IC 3-12-1-7 or IC 3-12-1-7.1 if a voter



1 ~~casts a straight party ticket.~~

2 SECTION 14. IC 3-11-13-22, AS AMENDED BY P.L.212-2025,
3 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 JULY 1, 2026]: Sec. 22. (a) This section applies to:

5 (1) a ballot card voting system; and

6 (2) a voting system that includes features of a ballot card voting
7 system and a direct record electronic voting system.

8 (b) Not later than seventy-four (74) days before election day, for
9 each county planning to use automatic tabulating machines at the next
10 election, VSTOP shall provide each county election board with a
11 randomly sorted list of unique identification numbers for the inventory
12 of machines in the county maintained under IC 3-11-16-4. Starting at
13 the top of the list, the county election board shall select machines in the
14 list in the order listed so that:

15 (1) if a machine to be selected in the list is not scheduled to be
16 used in the upcoming election, the selection process will move to
17 the next machine in the order listed;

18 (2) each selected machine is scheduled to be used in the
19 upcoming election; and

20 (3) the number of machines selected is not less than five percent
21 (5%) of the machines in the county scheduled by the county
22 election board to be used in the upcoming election.

23 (c) The county election board shall test the machines as described
24 in subsection (b) to ascertain that the machines will correctly ~~do the~~
25 ~~following:~~

26 ~~(1) Count the votes cast for straight party tickets, for all~~
27 ~~candidates (including write-in candidates), and on all public~~
28 ~~questions.~~

29 ~~(2) retract an absentee ballot card of a voter who is later found~~
30 ~~disqualified or whose ballot may not be counted, in accordance~~
31 ~~with IC 3-11.5-4-6, before the voter's ballot is tabulated.~~

32 If an individual attending the public test requests that additional
33 automatic tabulating machines be tested, then the county election board
34 shall select and test additional machines from the list in the manner
35 described in subsection (b).

36 (d) If VSTOP does not provide the lists under subsection (b) not
37 later than sixty (60) days before the election, the county election board
38 shall establish and implement a procedure for random selection of not
39 less than five percent (5%) of the machines in the county to be used in
40 the upcoming election. The county election board shall then test the
41 machines selected as described in subsection (c).

42 (e) Not later than seven (7) days after conducting the test under



subsubsection (c), the county election board shall certify to the election division that the test has been conducted in conformity with subsubsection (c). The testing under subsubsection (c) must begin before absentee voting begins in the office of the circuit court clerk under IC 3-11-10-26.

(f) Public notice of the time and place shall be given at least forty-eight (48) hours before the test. The notice shall be published once in accordance with IC 5-3-1-4.

(g) If a county election board determines that:

(1) a ballot:

(A) must be reprinted or corrected as provided by IC 3-11-2-16 because of the omission of a candidate, political party, or public question from the ballot; or

(B) is an absentee ballot that a voter is entitled to recast under IC 3-11.5-4-2 because the absentee ballot includes a candidate for election to office who:

(i) ceased to be a candidate; and

(ii) has been succeeded by a candidate selected under IC 3-13-1 or IC 3-13-2; and

(2) ballots used in the test conducted under this section were not reprinted or corrected to remove the omission of a candidate, political party, or public question, or indicate the name of the successor candidate;

the county election board shall conduct an additional public test described in subsubsection (c) using the reprinted or corrected ballots. Notice of the time and place of the additional test shall be given in accordance with IC 5-14-1.5, but publication of the notice in accordance with IC 5-3-1-4 is not required.

(h) Notwithstanding IC 3-5-4-1.7, a county election board may send a signed form from a public test to the election division by electronic mail or fax.

SECTION 15. IC 3-11-13-31.7, AS AMENDED BY P.L.227-2023, SECTION 99, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 31.7. (a) This section is enacted to comply with 52 U.S.C. 21081 by establishing uniform and nondiscriminatory standards to define what constitutes a vote on an optical scan voting system.

(b) After receiving ballot cards, a voter shall, without leaving the room, go alone into one (1) of the booths or compartments that is unoccupied and indicate:

(1) the candidates for whom the voter desires to vote by marking the connectable arrows, circles, ovals, or squares immediately beside:



- (A) the candidates' names; or
- (B) the numbers referring to the candidates; and
- (2) the voter's preference on each public question by marking the connectable arrow, oval, or square beside:
 - (A) the word "yes" or "no" under the question; or
 - (B) the number referring to the word "yes" or "no" on the ballot.

(c) If an election is a general or municipal election and a voter desires to vote for all the candidates of one (1) political party, the voter may mark:

- (1) the circle enclosing the device; or
- (2) the connectable arrow, circle, oval, or square described in section 11 of this chapter;

that designates the candidates of that political party. Except as provided by IC 3-11-7-4(b), the voter's vote shall then be counted for all the candidates of that political party. However, if the voter marks the circle, arrow, oval, or square of an independent ticket (described in IC 3-11-2-6), the vote shall not be counted for any other independent candidate on the ballot.

(d) (c) This subsection applies to a voter casting a ballot on a voting system that includes features of both an optical scan ballot card voting system and a direct record electronic voting system. After entering into a booth used with the voting system, the voter shall indicate the candidates for whom the voter desires to vote and the voter's preference on each public question by:

- (1) inserting a paper ballot or an optical scan ballot into the voting system; or
- (2) using headphones to listen to a recorded list of political parties, candidates, and public questions.

(e) (d) A voter using a voting system described in subsection (d) (c) may indicate the voter's selections by:

- (1) touching a device on or in the squares immediately adjacent to the name of a political party, candidate, or response to a public question; or
- (2) indicating the voter's choices by using a sip puff device that enables the voter to indicate a choice by inhaling or exhaling.

SECTION 16. IC 3-11-14-2, AS AMENDED BY P.L.115-2022, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Except as provided in subsections (c) and (f), a county election board may use an approved electronic voting system:

- (1) in any election;



(2) in all or in some of the precincts within a political subdivision

holding an election; and

(3) instead of or in combination with any other voting method.

(b) A county election board may use an electronic voting system which includes a voter verifiable paper audit trail if the voting system:

(1) otherwise complies with this chapter and IC 3-11-15; and

(2) is certified by the Indiana election commission.

(c) A county election board may not use an approved electronic voting system purchased, leased, or otherwise acquired by the county after December 31, 2019, unless the system:

(1) is certified by the Indiana election commission; and

(2) includes a voter verifiable paper audit trail.

This subsection does not prohibit a county election board from having maintenance performed on an electronic voting system purchased, leased, or otherwise acquired by the county before January 1, 2020.

(d) The voter verifiable paper audit trail must contain all of the following:

(1) The name or code of the election as provided by the voting system.

(2) The date of the election.

(3) The date the voter verifiable paper audit trail was printed.

(4) A security code and record number specific to each paper receipt assigned by the voting system.

(5) The name or designation of the voter's precinct.

(6) The name or designation of each office on the voter's ballot.

(7) The name of the candidate and the designation of the candidate's political party selected by the voter.

~~(8) If the voter selects a straight party ticket, the name of the political party ticket the voter selected.~~

~~(9)~~ (8) The following information:

(A) A description of the text of any public question or judicial retention question on the voter's ballot that:

(i) contains not more than thirty (30) characters; and

(ii) the county election board determines reasonably conveys the content of the public question or judicial retention question.

(B) The response the voter selected for each question.

(e) The voter verifiable paper audit trail may contain additional information and instructions determined to be useful to the voter by the county election board subject to the design capabilities of the voter verifiable paper audit trail.

(f) This subsection applies to a county in which any direct record



1 electronic voting system that does not include a voter verifiable paper
 2 audit trail is used for an election. A county election board shall not use
 3 a direct record electronic voting system in an election after July 1,
 4 2022, unless the county election board:

5 (1) uses a number of direct record electronic voting systems
 6 including a voter verifiable paper audit trail in the election that is
 7 equal to or greater than ten percent (10%) of the total number of
 8 direct record electronic voting systems owned, leased, or
 9 otherwise available to the county as of January 1, 2022, and as of
 10 January 1 in each year thereafter;

11 (2) determines, not later than July 1, 2022, and January 1 of each
 12 year thereafter, the minimum number of direct record electronic
 13 voting systems including a voter verifiable paper audit trail
 14 necessary to comply with the requirement of this subsection; and

15 (3) files a certification of this determination to the secretary of
 16 state not later than August 11, 2022, and February 11 of each year
 17 thereafter.

18 SECTION 17. IC 3-11-14-3.5, AS AMENDED BY THE
 19 TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL
 20 ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 21 JULY 1, 2026]: Sec. 3.5. (a) Each county election board shall have the
 22 names of all candidates for all elected offices, political party offices,
 23 and public questions printed on ballot labels for use in an electronic
 24 voting system as provided in this chapter.

25 (b) The county may:

26 (1) print all offices and public questions on a single ballot label;
 27 and

28 (2) include a ballot variation code to ensure that the proper
 29 version of a ballot label is used within a precinct.

30 (c) Each type of ballot label must be of uniform size and of the same
 31 quality and color of paper (except as permitted under IC 3-10-1-17).

32 (d) The nominees of a political party or an independent candidate
 33 or independent ticket (described in IC 3-11-2-6) nominated by
 34 petitioners must be listed on the ballot label with the name and device
 35 set forth on the certification or petition. The circle containing the
 36 device may be of any size that permits a voter to readily identify the
 37 device. IC 3-11-2-5 applies if the certification or petition does not
 38 include a name or device, or if the same device is selected by two (2)
 39 or more parties or petitioners. In the case of a candidate described in
 40 IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the
 41 candidate's name signifying that the candidate elects not to disclose any
 42 affiliation with a political party or that the candidate:



(1) is not affiliated with a political party; and

(2) does not identify as an independent candidate.

(e) The ballot labels must list the offices and public questions on the general election ballot in the order listed in IC 3-11-2-12, IC 3-11-2-12.4, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a), IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). Each office and public question may have a separate screen, or the offices and public questions may be listed in a continuous column either vertically or horizontally.

(f) The name of each office must be printed in a uniform size in bold type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for.", ~~A straight party vote will not count as a vote for any candidate for this office.~~; if more than one (1) candidate is to be elected to the office.

~~(3) "Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.~~

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be grouped together in the following order:

(1) The major political party whose candidate received the ~~highest~~ **greatest** number of votes in the county for secretary of state at the ~~last~~ **most recent** election **for secretary of state** is listed first.

(2) The major political party whose candidate received the second ~~highest~~ **greatest** number of votes in the county for secretary of state **at the most recent election for secretary of state** is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the ~~last~~ **most recent** election **for secretary of state** are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the ~~last~~ **most recent** election **for secretary of state** or a nominee is an independent candidate or independent ticket



(described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).

(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C) is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed in subdivisions (1) through (6), if required by law. A space for write-in voting for an office is not required if there are no declared write-in candidates for that office. However, procedures must be implemented to permit write-in voting for candidates for federal offices.

(8) The name of a write-in candidate may not be listed on the ballot.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent", if the:

(1) candidate; or

(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate is not affiliated with a political party and does not identify as an independent candidate.

(i) All the candidates of the same political party for election to at-large seats on the fiscal or legislative body of a political subdivision must be grouped together:

(1) under the name of the office that the candidates are seeking;

(2) in the party order established by subsection (g); and

(3) within the political party, in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of



1 candidates to be elected) candidate(s) of ANY party for this office."

2 (j) Candidates for election to at-large seats on the governing body
3 of a school corporation must be grouped:

4 (1) under the name of the office that the candidates are seeking;
5 and

6 (2) in alphabetical order according to surname.

7 A statement reading substantially as follows must be placed
8 immediately below the name of the office and above the name of the
9 first candidate: "Vote for not more than (insert the number of
10 candidates to be elected) candidate(s) for this office." ~~A straight party~~
11 ~~vote will not count as a vote for any candidate for this office."~~

12 (k) The cautionary statement described in IC 3-11-2-7 must be
13 placed at the top or beginning of the ballot label before the first public
14 question is listed.

15 (l) The instructions described in IC 3-11-2-8 ~~IC 3-11-2-10(d)~~; and
16 ~~IC 3-11-2-10(e)~~ **IC 3-11-2-10(c)** may be:

17 (1) placed on the ballot label; or

18 (2) posted in a location within the voting booth that permits the
19 voter to easily read the instructions.

20 (m) ~~Except as provided in section 14.5 of this chapter,~~ The ballot
21 label must include: ~~a touch sensitive point or button for voting a~~
22 ~~straight political party ticket by one (1) touch, and the touch sensitive~~
23 ~~point or button must be identified by:~~

24 (1) the name of the political party; and

25 (2) immediately below or beside the political party's name, the
26 device of that party (described in IC 3-11-2-5).

27 The name and device of each party must be of uniform size and type,
28 and arranged in the order established by subsection (g) for listing
29 candidates under each office. ~~The instructions described in~~
30 ~~IC 3-11-2-10(c) for voting a straight party ticket and the statement~~
31 ~~concerning presidential electors required under IC 3-10-4-3 must be~~
32 ~~placed on the ballot label. The instructions for voting a straight party~~
33 ~~ticket must include the statement: "If you do not wish to vote a straight~~
34 ~~party ticket, press "NEXT" (or replace "NEXT" with the term used by~~
35 ~~that voting system to permit a voter to skip a ballot screen) to continue~~
36 ~~voting."~~

37 (n) A public question must be in the form described in
38 IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a touch sensitive
39 point or button must be used instead of a square. Except as expressly
40 authorized or required by statute, a county election board may not print
41 a ballot label that contains language concerning the public question
42 other than the language authorized by a statute.



(o) The requirements in this section:

(1) do not replace; and

(2) are in addition to;

any other requirements in this title that apply to ballots for electronic voting systems.

(p) The procedure described in IC 3-11-2-16 must be used when a ballot label does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters.

SECTION 18. IC 3-11-14-14.5 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 14.5: A ballot label must not include a touch sensitive point or button to permit a voter to cast a straight party ticket for a political party if:~~

~~(1) there are no candidates of that political party; or~~

~~(2) the only candidates:~~

~~(A) of the political party; or~~

~~(B) that have stated an affiliation with the political party under IC 3-8-2.5-2.5(a)(5);~~

~~are for election to school board offices or offices to which more than one (1) individual is to be elected and which will not be credited with a vote under IC 3-12-1-7 or IC 3-12-1-7.1 if a voter casts a straight party ticket.~~

SECTION 19. IC 3-11-14-23, AS AMENDED BY P.L.21-2016, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 23. (a) This section is enacted to comply with 52 U.S.C. 21081 by establishing uniform and nondiscriminatory standards to define what constitutes a vote on an electronic voting system.

(b) If a voter is not challenged by a member of the precinct election board, the voter may pass the railing to the side where an electronic voting system is and into the voting booth. There the voter shall register the voter's vote in secret by indicating:

(1) the candidates for whom the voter desires to vote by touching a device on or in the squares immediately above the candidates' names;

(2) if the voter intends to cast a write-in vote, a write-in vote by touching a device on or in the square immediately below the candidates' names and printing the name of the candidate in the window provided for write-in voting; and

(3) the voter's preference on each public question by touching a device above the word "yes" or "no" under the question.

~~(c) If an election is a general or municipal election and a voter desires to vote for all the candidates of one (1) political party or group~~



1 of petitioners, the voter may cast a straight party ticket by touching that
 2 party's device. Except as provided in IC 3-11-7.5-10(b), the voter's vote
 3 shall then be counted for all the candidates under that name. However,
 4 if the voter casts a vote by touching the circle of an independent ticket
 5 comprised of two (2) candidates, the vote shall not be counted for any
 6 other independent candidate on the ballot.

7 ~~(d)~~ (c) As provided by 52 U.S.C. 21081, a voter casting a ballot on
 8 an electronic voting system must be:

- 9 (1) permitted to verify in a private and independent manner the
- 10 votes selected by the voter before the ballot is cast and counted;
- 11 (2) provided the opportunity to change the ballot or correct any
- 12 error in a private and independent manner before the ballot is cast
- 13 and counted, including the opportunity to receive a replacement
- 14 ballot if the voter is otherwise unable to change or correct the
- 15 ballot; and
- 16 (3) notified before the ballot is cast regarding the effect of casting
- 17 multiple votes for the office and provided an opportunity to
- 18 correct the ballot before the ballot is cast and counted.

19 SECTION 20. IC 3-11-14.5-1, AS AMENDED BY P.L.135-2020,
 20 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 21 JULY 1, 2026]: Sec. 1. (a) Not later than seventy-four (74) days before
 22 election day, for each county planning to use an electronic voting
 23 system at the next election, VSTOP shall provide each county election
 24 board with a randomly sorted list of unique identification numbers for
 25 the inventory of machines in the county maintained under
 26 IC 3-11-16-4. Starting at the top of the list, the county election board
 27 shall select machines in the list in the order listed so that:

- 28 (1) if a machine to be selected in the list is not scheduled to be
- 29 used in the upcoming election, the selection process will move to
- 30 the next machine in the order listed;
- 31 (2) each selected machine is scheduled to be used in the
- 32 upcoming election; and
- 33 (3) the number of machines selected is not less than five percent
- 34 (5%) of the machines in the county scheduled by the county
- 35 election board to be used in the upcoming election.

36 (b) The county election board shall test the machines as described
 37 in subsection (a) to ascertain that the machines will correctly count the
 38 votes cast ~~for straight party tickets~~, for all candidates (including
 39 write-in candidates) and on all public questions. If an individual
 40 attending the public test requests that additional electronic voting
 41 systems be tested, then the county election board shall select and test
 42 additional machines from the list in the manner described in subsection



(a).

(c) If VSTOP does not provide the lists under subsection (a) not later than sixty (60) days before the election, the county election board shall establish and implement a procedure for random selection of not less than five percent (5%) of the machines in the county. The county election board shall then test the machines selected to be used in the upcoming election as described in subsection (b).

(d) The testing under subsection (b) must begin before absentee voting starts in the office of the circuit court clerk under IC 3-11-10-26.

(e) If a county election board determines that:

(1) a ballot provided by an electronic voting system:

(A) must be corrected as provided by IC 3-11-2-16 because of the omission of a candidate, political party, or public question from the ballot; or

(B) is an absentee ballot that a voter is entitled to recast under IC 3-11.5-4-2 because the absentee ballot includes a candidate for election to office who:

(i) ceased to be a candidate; and

(ii) has been succeeded by a candidate selected under IC 3-13-1 or IC 3-13-2; and

(2) machines used in the test conducted under this section did not contain a ballot that was reprinted or corrected to remove the omission of a candidate, political party, or public question, or indicate the name of the successor candidate;

the county election board shall conduct an additional public test described in subsection (b) using the machines previously tested and containing the reprinted or corrected ballots.

SECTION 21. IC 3-12-1-1, AS AMENDED BY P.L.64-2014, SECTION 68, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Subject to sections 5, 6, 7, 8, 9, 9.5, and 13 of this chapter, the primary factor to be considered in determining a voter's choice on a ballot is the intent of the voter. If the voter's intent can be determined on the ballot or on part of the ballot, the vote shall be counted for the affected candidate or candidates or on the public question. However, if it is impossible to determine a voter's choice of candidates on a part of a ballot or vote on a public question, then the voter's vote concerning those candidates or public questions may not be counted.

SECTION 22. IC 3-12-1-5, AS AMENDED BY P.L.195-2025, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) This subsection does not apply to a ballot card voting system or an electronic voting system. ~~Except as provided~~



in subsection (d); A voting mark made by a voter on or in a voting square at the left of a candidate's name or political party's name shall be counted as a vote for the candidate. or candidates of the political party.

(b) This subsection applies to a ballot card voting system. A voting mark made by a voter:

(1) on or in a circle, oval, or square; or

(2) to connect a connectable arrow;

immediately below or beside a candidate's name or political party's name shall be counted as a vote for the candidate. or candidates of the political party; except as provided in subsection (d).

(c) This subsection applies to a direct record electronic voting system. A voting mark made by a voter touching a touch sensitive point or button below or beside a candidate's name or political party's name shall be counted as a vote for the candidate. or candidates of the political party; except as provided in subsection (d).

(d) A voter who wishes to cast a ballot for a candidate for election to a school board office or an at-large district to which more than one (1) person may be elected on a:

(1) county council;

(2) city common council;

(3) town council; or

(4) township board;

must make a voting mark for each individual candidate for whom the voter wishes to cast a vote. A straight ticket voting mark on a paper ballot, ballot card voting system; or electronic voting system shall not be counted as a straight party ticket voting mark as a vote for any candidate for an office described by this subsection.

SECTION 23. IC 3-12-1-7, AS AMENDED BY P.L.21-2016, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) This subsection applies whenever a voter:

(1) votes a straight party ticket; and

(2) votes only for one (1) or more individual candidates who are all of the same political party as the straight ticket vote.

Except as provided in subsection (d) or (e), the straight ticket vote shall be counted and the individual candidate votes may not be counted.

(b) This subsection applies whenever:

(1) a voter has voted a straight party ticket for the candidates of one (1) political party;

(2) only one (1) person may be elected to an office; and

(3) the voter has voted for one (1) individual candidate for the office described in subdivision (2) who is:



(A) a candidate of a political party other than the party for which the voter voted a straight ticket; or

(B) an independent candidate or declared write-in candidate for the office.

If the voter has voted for one (1) individual candidate for the office described in subdivision (2), the individual candidate vote for that office shall be counted; the straight party ticket vote for that office may not be counted; and the straight party ticket votes for other offices on the ballot shall be counted.

(c) This subsection applies whenever:

(1) a voter has voted a straight party ticket for the candidates of one (1) political party; and

(2) the voter has voted for more individual candidates for the office than the number of persons to be elected to that office.

The individual candidate votes for that office may not be counted; the straight party ticket vote for that office may not be counted; and the straight party ticket votes for other offices on the ballot shall be counted.

(d) This subsection applies whenever:

(1) a voter has voted a straight party ticket for the candidates of one (1) political party;

(2) more than one (1) person may be elected to an office; and

(3) the voter has voted for individual candidates for the office described in subdivision (2) who are:

(A) independent candidates or declared write-in candidates;

(B) candidates of a political party other than the political party for which the voter cast a straight party ticket under subdivision (1); or

(C) a combination of candidates described in clauses (A) and (B).

The individual votes cast by the voter for the office for the independent candidates, declared write-in candidates, and the candidates of a political party other than the political party for which the voter cast a straight party ticket shall be counted unless the total number of these individual votes is greater than the number of persons to be elected to the office. The straight party ticket votes for the office shall not be counted. The straight party ticket votes for other offices on the voter's ballot shall be counted.

(e) This subsection applies whenever:

(1) a voter has voted a straight party ticket for the candidates of one (1) political party;

(2) more than one (1) person may be elected to an office; and



(3) the voter has voted for individual candidates for the office described in subdivision (2) who are:

(A) independent candidates; declared write-in candidates; or candidates of a political party other than the political party for which the voter cast a straight party ticket under subdivision (1); and

(B) candidates of the same political party for which the voter cast a straight party ticket under subdivision (1).

The individual votes cast by the voter for the office for the independent candidates; the declared write-in candidates; and the candidates of a political party other than the political party for which the voter cast a straight party ticket; and the candidates of the political party for which the voter cast a straight party ticket shall be counted unless the total number of these individual votes is greater than the number of persons to be elected to the office. The straight party ticket votes for the office shall not be counted. The straight party ticket votes for other offices on the voter's ballot shall be counted.

(f) If a voter votes a straight party ticket for more than one (1) political party; the whole ballot is void with regard to all candidates nominated by a political party; declared write-in candidates; or candidates designated as independent candidates on the ballot. However, the voter's vote for a school board candidate or on a public question shall be counted if otherwise valid under this chapter.

(g) (a) If a voter does not vote a straight party ticket and the number of votes cast by that a voter for the candidates for an office are less than or equal to the number of openings for that office, the individual candidates votes shall be counted.

(h) (b) If a voter does not vote a straight party ticket and the number of votes cast by that a voter for an office exceeds the number of openings for that office, none of the votes concerning that office may be counted.

SECTION 24. IC 3-12-1-7.1 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 7.1. Notwithstanding section 7 of this chapter, a straight party vote does not count for any candidate for a school board office.~~

SECTION 25. IC 3-12-1-7.5, AS AMENDED BY P.L.21-2016, SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.5. (a) If a voter votes for one (1) individual candidate for an office for which only one (1) person may be elected and also writes in the name of another candidate for the same office, neither vote may be counted.

(b) If a voter votes for at least one (1) individual candidate for an office for which at least two (2) people may be elected and also writes



in the name of at least one (1) candidate, the vote for that office may not be counted unless the number of individual votes cast for the office, when added to the number of write-in votes cast for that office, is less than or equal to the number of seats available for that office.

(c) If a voter votes an individual ~~or a straight party~~ vote for a candidate for an office and also writes in the name of the same candidate for the same office, only one (1) vote for that candidate may be counted.

SECTION 26. IC 3-12-1-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 8: (a) Except as provided in subsection (b), a voting mark made by a voter on or in a circle containing a political party device shall be counted as a vote for each candidate of that political party on that ballot.

(b) A voter who wishes to cast a ballot for a candidate for election to a school board office or an at-large district to which more than one (1) person may be elected on a:

- (1) county council;
- (2) city common council;
- (3) town council; or
- (4) township board;

must make a voting mark for each individual candidate for whom the voter wishes to cast a vote. A voting mark on or in a circle containing a political party device shall not be counted as a straight party ticket voting mark as a vote for any candidate for an office described by this subsection.

SECTION 27. IC 3-12-1-14 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) This section does not apply to a vote

- (1) cast for President or Vice President of the United States under IC 3-10-4-6. ~~or~~
- (2) ~~described by section 15 of this chapter.~~

(b) A vote cast for a candidate who ceases to be a candidate may not be counted as a vote for a successor candidate selected under IC 3-13-1 or IC 3-13-2.

SECTION 28. IC 3-12-1-15 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 15: (a) This section does not apply to a candidate for a school board office or an at-large office of a county council, city common council, town council, or township board, if those offices appear on a ballot.

(b) This section applies to a vote cast for one (1) straight party ticket that includes a candidate for election to office who:

- (1) ceases to be a candidate; and



1 (2) is succeeded by a candidate selected under IC 3-13-1 or
 2 IC 3-13-2.
 3 (c) A vote cast in the election for the original nominee is considered
 4 a vote cast for the successor.

